

23PR00357 Estate of Robert Rudd Reyes

County: sonoma

Division: Probate

Hearing date: 2026-08-27

Motion: Case Management Conference

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Estate of Robert Rudd Reyes

23PR00357

Case Management Conference

Tentative Ruling: NO APPEARANCES REQUIRED. Letters in this case were issued on January 23, 2024. When the probate was opened, a case management conference hearing date was set for May 1, 2025, for status. The tentative ruling prior to that hearing required appearances. No appearances were made and the Court issued an Order to Show Cause (OSC) based on the failure to appear as well as the failure to timely proceed with estate administration or show good cause for delay. On May 13, 2025, the OSC, which noticed a hearing for July 31, 2025, was served on the personal representative. The personal representative appeared at the July hearing and the matter was continued to December 4, 2025. The personal representative appeared at that hearing as well and the matter was continued again to April 16, 2026. Despite prior indications that a petition for final distribution was forthcoming, none was filed before the April 16, 2026 hearing and the Court issued the following tentative ruling, which was adopted when there were no requests to appear:

An Order to Show Cause (OSC) was issued to the administrator on May 13, 2025. Despite the passage of almost a year, and several continuances, there has been no change in the status of the case. The Administrator is removed forthwith. The case will be dismissed at the next hearing if there is no petition for appointment of a successor administrator filed. Administrator is not discharged. Matter is CONTINUED to August 27, 2026 at 3:00 p.m. in Dept. 12 for dismissal without prejudice or filing of petition for appointment of successor administrator. A copy of these minutes shall be served on the beneficiary listed in the petition for probate.

These minutes were served on the personal representative. After the personal representative was removed and letters revoked, a petition for final distribution was filed on July 9, 2026. If there was a basis to seek reconsideration of the order of removal, or if the failure to respond or appear was the result of mistake, inadvertence, etc., there are legal means to seek relief. None of these were or have yet been pursued. It is not appropriate for a court to simply ignore its own orders. In light of the order of removal, there is no standing to file the petition for final distribution and it is stricken. The corresponding hearing of September 4, 2026 is VACATED. This case is DISMISSED without prejudice. The personal representative is not discharged and remains personally liable for any loss to the estate as a result of any breach of fiduciary duty to the extent allowed by law and established by the facts.

The Court notes when this case was opened, the decedent's mother was listed as the sole beneficiary. If she has post-deceased the decedent, the estate here must be distributed to her estate.